

26NNCV03454 26NNCV03454

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-04

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Case Number: 26NNCV03454 Hearing Date: September 4, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 4, 2026

DEMURRER; MOTION TO STRIKE

Los

Angeles Superior Court Case # 26NNCV03454

MP: Defendant Carlos A. Flores, M.D.

RP: Plaintiff Tam

Vo

NOTICE:

The

Court is not requesting oral argument on this matter. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at BurDeptA@LACourt.org or by telephone at (818) 260-8412.

ALLEGATIONS:

Tam

Vo ("Plaintiff") alleges that she was a woman of childbearing age, the mother of one child, and a person who had expressed a clear, unambiguous desire to have additional children. (Compl., ¶12.) She alleges she communicated this desire to Defendants Carlos A. Flores, M.D., Richard L. Friedman, M.D., Ph.D., Mey Yip, M.D., Pacific Gynecologic Specialists, Providence Saint Joseph Medical Center, and Providence Medical Institute dba Providence Medical Institute-Burbank Women's Health Center. This was communicated prior to a December 29, 2025 medical procedure.

Plaintiff alleges that Dr.

Flores examined her on September 10, 2025, and recommended she undergo a hysterectomy, which she verbally refused. (Compl., ¶¶14-15.) Plaintiff contends that Dr. Flores proposed a hysteroscopic myomectomy (a minimally invasive procedure), and that the only indication for conversion to a hysteroscopy would be detection of tissue malignancy. (Id., ¶16.) She alleges Dr. Flores did not order any additional diagnostic imaging. (Id., ¶17.) In October 2025, Plaintiff sought a second opinion from Dr. Yip, who was affiliated with the same Providence network as Dr. Flores, and rather than conducting an independent evaluation, Dr. Yip advised Plaintiff to proceed with Dr. Flores. (Id., ¶18.) Plaintiff claims that she was given consent forms to sign without any substantive informed consent discussions and that during her December 26, 2025 pre-operative appointment with Dr. Flores, he did not review her current conditions nor conduct a substantive informed consent discussion. (Id., ¶¶19-20.) She alleges that Dr. Flores' notes indicate she declined a consultation with a gynecologic oncologist on December 28, 2025, but she claims that the visit never occurred. (Id., ¶21.)

Plaintiff alleges that she

presented to Providence Saint Joseph Medical Center on December 29, 2025 for a hysteroscopic myomectomy. (Id., ¶22.) During the procedure, Dr. Flores allegedly caused a uterine perforation and converted the procedure from hysteroscopic to laparoscopic, then to open abdominal surgery. (Id., ¶23.) A total hysterectomy was performed, which Plaintiff claims she did not consent to and was only told by her bedside nurse after the surgery. (Id., ¶¶25-26.) Subsequent pathology results confirmed the absence of malignancy in the removed tissue. (Id., ¶27.)

The Complaint, filed December 17, 2025, alleges: (1) Medical Negligence; (2) Lack of Informed Consent; (3) Medical Battery; (4) Fraudulent Concealment/Intentional Misrepresentation; and (5) Intentional Infliction of Emotional Distress.

MOTIONS ON CALENDAR:

On July 27, 2026, Dr. Flores filed a Demurrer and Motion to Strike portions of the Complaint. On August 24, 2026, Plaintiffs filed oppositions.

LEGAL STANDARD:

A. Demurrer

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (*Id.*)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (*Blank, supra*, 39 Cal. 3d at 318.)

Pursuant to C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a

demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal. 4th 1074, 1082.)

B. Motion to Strike

Motions to strike are used

to reach defects or objections to pleadings that are not challengeable by demurrer, such as words, phrases, and prayers for damages. (See C.C.P. §§ 435, 436, and 437.) The proper procedure to attack false allegations in a pleading is a motion to strike. (C.C.P. § 436(a).) In granting a motion to strike made under C.C.P. § 435, “[t]he court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (C.C.P. § 436(a).)

Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (C.C.P. § 431.10.)

The court may also “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (C.C.P. § 436(b).)

MEET AND CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (Broughton Decl., ¶¶2-5.)

ANALYSIS

RE DEMURRER:

Dr.

Flores demurs to the Second, Third, Fourth, and Fifth Causes of Action in the Complaint.

A.

Second

Cause of Action for Lack of Informed Consent and Third Cause of Action for Medical

Battery – Overruled

“Our high court has made it clear that battery and lack of informed consent are separate causes of action. A claim based on lack of informed consent—which sounds in negligence—arises when the doctor performs a procedure without first adequately disclosing the risks and alternatives. In contrast, a battery is an intentional tort that occurs when a doctor performs a procedure without obtaining any consent.” (Saxena v. Goffney (2008) 159 Cal.App.4th 316, 324.)

“Where a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained, there is a clear case of battery.” (Cobbs v. Grant (1972) 8 Cal.3d 229, 239.) To establish a cause of action for medical battery, the plaintiff must allege: (1) defendant performed a medical procedure without plaintiff’s consent or plaintiff consented to one medical procedure but defendant performed a substantially different medical procedure; (2) plaintiff was harmed; and (3) defendant’s conduct was a substantial factor in causing plaintiff’s harm. (CACI 530A.)

In the Second Cause of Action, Plaintiff alleges that Dr. Flores had a duty to disclose to Plaintiff all material information necessary for Plaintiff to make an informed decision regarding her surgical treatment, including: “the nature and scope of the proposed procedure; all material risks, including the risk of uterine perforation and the possibility of conversion to hysterectomy; the availability and advisability of a gynecologic oncologist consultation; available alternatives to the proposed surgical approach; and the significance of the recommended diagnostic imaging that was never obtained.” (Compl., ¶43.) Plaintiff contends Dr. Flores affirmatively misrepresented to Plaintiff that the only indication for hysterectomy would be the discovery of malignancy, but no malignancy was found and her uterus was nevertheless removed. (Id.) Plaintiff also alleges Dr. Friedman (who participated in performing the total hysterectomy), Providence Saint Joseph Medical Center (through its nursing and facility staff), and Pacific Gynecologic Specialists (as Dr. Friedman’s employer or principal) had an independent duty to verify that Plaintiff had given informed consent, but they too failed to verify her consent. (Id., ¶¶44-46.) She contends that Defendants

failed to disclose material information to Plaintiff that a reasonable patient in Plaintiff's position would have considered significant in deciding whether to consent to the procedure as performed and, had she been adequately informed, she would not have consented to the procedure. (Id., ¶47.)

In the Third Cause of Action, Plaintiff alleges that Plaintiff consented to a hysteroscopic myomectomy, and not a total hysterectomy, and her consent to the former procedure was expressly condition upon Dr. Flores's representation that conversion to hysterectomy would occur only in the event malignancy was detected in the tissue. (Compl., ¶49.) She alleges that because no malignancy was detected, the condition upon which her consent was predicated was never met. (Id.) She contends the total hysterectomy under these circumstances exceeded the scope of Plaintiff's consent and constituted a procedure performed without her authorization.

(Id.) Plaintiff asserts that Dr. Flores performed and Dr. Friedman participated in performing a total hysterectomy on plaintiff on December 29, 2025 without verifying or obtaining her consent. (Id., ¶50.) She alleges that Defendants committed an authorized touching of Plaintiff's person constituting medical battery by performing a surgical procedure that was substantially different from and

broader in scope than the procedure to which Plaintiff consented. (Id., ¶53.)

Dr. Flores demurs to the Second Cause of Action, arguing that the Lack of Informed Consent claim sounds in Professional Negligence (the First Cause of Action) and she lacks specific facts to support her claim. Dr. Flores relies in part on Cobbs v. Grant (1972) 8 Cal.3d 229, arguing that this claim sounds in negligence.

In Cobbs v. Grant (1972) 8 Cal.3d 229, the plaintiff was admitted to treatment of a duodenal ulcer and his family doctor concluded that surgery was necessary. Defendant Dr. Grant (surgeon) was called and he examined plaintiff and agreed that surgery was indicated. Dr. Grant explained the nature of the operation to plaintiff but did not discuss any of the inherent risks. (Cobbs, supra, 8 Cal.3d at 234.) No one had explained to the plaintiff that injuries to the spleen and/or that evolution of new ulcers were inherent risks

to the type of surgery performed on the plaintiff. After his initial surgery, plaintiff experienced pain and had his spleen removed and was also found to be developing a gastric ulcer. The plaintiff sued Dr. Grant for medical malpractice. At issue was whether the jury instruction on should have been framed in terms of battery or negligence. (ID. at 239.) The California Supreme Court discussed the question of informed consent and lack of informed consent as follows:

Where a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained, there is a clear case of battery. ...

However, when an undisclosed potential complication results, the occurrence of which was not an integral part of the treatment procedure but merely a known risk, the courts are divided on the issue of whether this should be deemed to be a battery or negligence. [Citations.] California authorities have favored a negligence theory. [Citations.]

...

We agree with the majority trend. The battery theory should be reserved for those circumstances when a doctor performs an operation to which the patient has not consented. When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present. However, when the patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation the action should be pleaded in negligence.

The facts of this case constitute a classic illustration of an action that sounds in negligence. Defendant performed the identical operation to which plaintiff had consented. The spleen injury, development of the gastric ulcer, gastrectomy and internal bleeding as a result of the premature absorption of a suture, were all links in a chain of low probability events inherent in the initial operation.

(Cobbs, supra, 8 Cal.3d at 239-241 [emphasis added].) The Supreme Court then went on to discuss the duty of a doctor defendant to inform plaintiff of the inherent risks of surgery under a negligence theory.

“The Cobbs court concluded that a patient whose consent had been exceeded by a well-meaning physician attempting therapeutic treatment should be relegated to a negligence cause of action. Our conclusion is that a patient whose consent has been obtained by a well-meaning deception as to the precise medical effect of the treatment should also be relegated to a negligence action.” (Freedman v. Superior Court (1989) 214 Cal.App.3d 734, 740.)

Cobbs stands for the proposition that the Lack of Informed Consent claim sounds in negligence, and not in battery.

However, this does not mean that it is duplicative of and subject to demurrer in light of the Professional Negligence claim. “Failure to obtain informed consent is a form of professional negligence.” (Davis v. Physician Assistant Bd. (2021) 66 Cal.App.5th 227, 276.) It has distinct set of physician duties to “disclose to the patient all material information to enable the patient to make an informed decision regarding the proposed operation or treatment.

[¶] Material information is information which the physician knows or should know would be regarded as significant by a reasonable person in the patient's position when deciding to accept or reject a recommended medical procedure. ...” (Id. at 277 [internal quotation marks and citations omitted]; see Flores v. Liu (2021) 60 Cal.App.5th 278, 292 [re duty to obtain informed consent].)

As such, the Court will allow the Second Cause of Action to proceed as a distinct claim from the First Cause of Action.

The demurrer to the Second Cause of Action is overruled.

Dr. Flores demurs to the Third Cause of Action, arguing that Plaintiff alleged that the procedure was converted to a hysterectomy due to a uterine rupture and that this was a clear indication of the information Dr. Flores provided during the pre-operative stage when she consented to the procedure. (Dem. at

pp.6-7; Compl., ¶¶14-16.)

Specifically, paragraphs 14-16 allege that on September 10, 2025, Plaintiff presented to Dr. Flores for an initial consultation where he recommended Plaintiff undergo a hysterectomy, which she verbally refused and expressed her desire to preserve her uterus for family-planning purposes. (Compl., ¶¶14-15.) She alleges that in response to his refusal, Dr. Flores proposed a hysteroscopic myomectomy and that the only indication for conversion to hysterectomy would be the detection of malignancy in the tissue. (Id., ¶16.) During the procedure on December 29, 2025, Dr. Flores allegedly caused a uterine perforation, and, in response, he converted the procedure to what was eventually the total hysterectomy. (Id., ¶¶23-24.)

Taking the allegations as true at the pleading stage, the Court finds that Plaintiff has alleged sufficient facts that she consented to one type of procedure (the hysteroscopic myomectomy), but Dr. Flores performed a total hysterectomy, which was a substantially different medical procedure that she did not consent to unless there was the presence of malignancy in the tissue. As further alleged in the Complaint, no malignancy was detected, such that the condition for a total hysterectomy was not met. (Id., ¶43.) She alleges she was damaged by the permanent loss of her uterus, cervix, and reproductive capacity, and that Dr. Flores's performance of the total hysterectomy was a substantial factor in causing her harm. (Id., ¶¶50, 53-54.) As such, the elements of Medical Battery have been adequately alleged.

The demurrer to the Third Cause of Action is Overruled.

B.

Fourth

Cause of Action for Fraudulent Concealment/Intentional Misrepresentation – Sustained with Leave to Amend

The elements for fraud are: (1) a representation, usually of fact, which is false; (2) knowledge of its falsity; (3) intent to

defraud; (4) justifiable reliance upon the misrepresentation; and (5) damage resulting from that justifiable reliance.

(Stansfield v. Starkey (1990)

220 Cal. App. 3d 59, 72-73.) The

elements for fraudulent concealment

are: (1) the defendant must have concealed or suppressed a material fact; (2)

the defendant must have been under a duty to disclose the fact to the

plaintiff; (3) the defendant must have intentionally concealed or suppressed

the fact with the intent to defraud the plaintiff; (4) the plaintiff must have

been unaware of the fact and would not have acted as he did if he had known of

the concealed or suppressed fact; and (5) as a result of the concealment or

suppression of the fact, the plaintiff must have sustained damage. (Lovejoy

v. AT&T Corp. (2004) 119 Cal. App. 4th 151, 157-158.) These causes of action are torts of deceit and the facts

constituting each element must be alleged with particularity; the claims cannot

be saved by referring to the policy favoring liberal construction of

pleadings. (Committee on

Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197,

216.) Since the claims must be pleaded with particularity, the

causes of action based on misrepresentations must allege facts showing how,

when, where, to whom, and by what means the misrepresentations were

tendered. (Stansfield v. Starkey

(1990) 220 Cal.App.3d 59, 73.)

In the Fourth Cause of Action, Plaintiff alleges that upon

information and belief, Dr. Flores created or caused to be created a History

& Physical note dated December 28, 2025, purporting to document an

in-person pre-operative examination and informed consent discussion with

Plaintiff, but Plaintiff alleges this visit did not occur. (Compl., ¶56.) The December 28, 2025 note allegedly contains

internally inconsistent documentation, including the absence of vital signs and

the deferral of pelvic assessment to the time of surgery under anesthesia,

which is inconsistent with a contemporaneous in-person office visit. (Id., ¶57.) Plaintiff contends she has records

corroborating that she was not physically present at Dr. Flores's office that

date. (Id.) On information and belief, Dr. Flores made

affirmative misrepresentations to Plaintiff and in the medical record regarding

the nature, scope, and necessity of the procedure performed, the consent

obtained, and Plaintiff's alleged declination of a gynecologic oncologist consultation. (Id., ¶58.) She alleges he made misrepresentations and

concealed material facts with the intent to induce Plaintiff to proceed with

surgery and to conceal his failure to comply with the applicable standard of

care and professional obligations. (Id.,

¶59.) She asserts she reasonably relied on Dr. Flores's representations regarding the nature and scope of the proposed procedure in deciding to proceed with surgery. (Id., ¶60.)

Dr. Flores argues that Plaintiff's allegations are conclusory and that she has not alleged specific facts supporting his intent to defraud her.

There appears to be two separate sets of "fraudulent" conduct alleged by Plaintiff: (1) Dr. Flores's alleged fabrication of notes; and (2) Dr. Flores's affirmative misrepresentations to Plaintiff and in the medical note regarding having obtained Plaintiff's consent.

Based on the wording, the Fraud Cause of Action is uncertain. While Plaintiff alleges Dr. Flores fabricated notes regarding consent, it is unclear how these representations were directed at Plaintiff at a time she could justifiably rely on them. Similarly, to the extent Dr. Flores concealed his pre-examination notes regarding consent, Plaintiff has not alleged his intent to conceal the notes and how he intended to defraud Plaintiff through the concealed notes. Finally, Plaintiff references that Dr. Flores made affirmative misrepresentations to Plaintiff, but this is not pled with the requisite particularity for a Fraud claim. (See Compl., ¶¶58-60.)

The demurrer to the Fourth Cause of Action is sustained with leave to amend. Upon amendment, Plaintiff should clarify the nature of this cause of action as it appears to combine several theories of fraud.

C.
Fifth
Cause of Action for Intentional Infliction of Emotional Distress – Overruled

The elements of intentional infliction of emotional distress are: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff suffered severe or extreme emotional distress; and (4) the

plaintiff's injuries were actually and proximately caused by the defendant's outrageous conduct. (Vasquez v. Franklin Mgmt. Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 832.)

In order to avoid a demurrer, the plaintiff must allege with great specificity, the acts which she believes are so extreme as to exceed all bounds of behavior usually tolerated in a civilized community. (Id.)

Conduct to be outrageous must be so extreme as to exceed all bounds of behavior usually tolerated in a civilized community. (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) In addition, the outrageous conduct must be of a nature which is especially calculated to cause, and does cause, mental distress of a very serious kind. (Id.)

"Although emotional distress may consist of any highly unpleasant mental reaction such as fright, grief, shame, humiliation, embarrassment, anger, chagrin, disappointment or worry [citation], to make out a claim, the plaintiff must prove that emotional distress was severe and not trivial or transient." (Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1376.) Such distress must be "of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it." (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1004.)

In the Fifth Cause of Action, Plaintiff alleges that Defendants performed an irreversible surgical procedure resulting in a patient's permanent sterilization when she had expressly refused a hysterectomy, communicated her desire to conceive additional children, and was never informed the procedure was occurring. (Compl., ¶63.) She alleges that Defendants then failed to inform Plaintiff of what had been done to her body for more than 24 hours, and neither operating physician spoke with Plaintiff directly or offered any acknowledgment of what had occurred. (Id.) She asserts Defendants acted with intent to cause, or with reckless disregard of the probability of causing, severe emotional distress to Plaintiff by deliberately performing an irreversible surgical procedure on a patient who had expressly refused it, followed by a failure to disclose what had occurred for more than 24 hours. (Id., ¶64.) She contends this reflects conduct so extreme as to support an inference of intentional or reckless infliction of emotional harm and resulted in Plaintiff suffering severe and emotional distress, including hospitalization for major depressive disorder, loss of employment, inability to work, and ongoing mental health treatment. (Id., ¶65.)

Dr.

Flores argues that Plaintiff has not alleged specific facts regarding how he engaged in extreme and outrageous conduct, nor pled facts demonstrating that she suffered emotional distress. He argues that he performed a medically necessary procedure with Plaintiff's consent, as alleged in paragraph 19.

Paragraph 19 alleges that Plaintiff was presented with consent forms by a staff member, but Dr. Flores was not present at that time nor did he engage in any substantive informed consent discussion at that time.

With

respect to damages, the Court finds that Plaintiff has adequately alleged that she suffered emotional distress, as stated in paragraph 65.

Furthermore,

with respect to whether Dr. Flores's conduct was extreme and outrageous, Plaintiff alleges that he proposed a hysteroscopic myomectomy and that this surgery would be converted to a hysterectomy upon detection of malignancy in the tissue. (Compl., ¶16.) However, Plaintiff alleges that a hysterectomy was performed even though the tissue showed no malignancy, thereby permanently sterilizing her from conceiving additional children. (Id., ¶¶27, 63.) Given the permanency of the surgery's outcome and Dr. Flores's alleged decision to conduct a hysterectomy when no tissue malignancy was detected, the Court finds that these allegations, taken as true at the pleading stage, are sufficient to allege extreme and outrageous conduct.

As

such, the demurrer to the Fifth Cause of Action is overruled.

ANALYSIS

RE MOTION TO STRIKE:

Dr.

Flores moves to strike the allegations for punitive damages. (Civil Case Cover Sheet at Box 3(c); Compl., ¶67; Prayer at ¶3).

Paragraph

67 alleges: "Plaintiff further seeks punitive and exemplary damages against Defendants Flores and Friedman pursuant to California Civil Code section 3294,

on the grounds that their conduct as alleged herein, including but not limited to the fabrication of a medical record and the conscious disregard of Plaintiff's expressed wishes and reproductive autonomy as set forth in the Third Cause of Action, and as to Defendant Flores, the Fourth Cause of Action, constitutes malice, oppression, or fraud by clear and convincing evidence." The Prayer seeks punitive damages against Dr. Flores and Dr. Friedman.

A complaint including a request for punitive damages must include allegations showing that the plaintiff is entitled to an award of punitive damages. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A claim for punitive damages cannot be pleaded generally and allegations that a defendant acted "with oppression, fraud and malice" toward plaintiff are insufficient legal conclusions to show that the plaintiff is entitled to an award of punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) Specific factual allegations are required to support a claim for punitive damages. (Id.)

Civil Code § 3294 authorizes a plaintiff to obtain an award of punitive damages when there is clear and convincing evidence that the defendant engaged in malice, oppression, or fraud. Section 3294(c) defines the terms in the following manner:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294(c).)

C.C.P. § 425.13(a) states:

(a) In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed. The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code. The court shall not grant a motion allowing the filing of an amended pleading that includes a claim for punitive damages if the motion for such an order is not filed within two years after the complaint or initial pleading is filed or not less than nine months before the date the matter is first set for trial, whichever is earlier.

(C.C.P. § 425.13(a).) "The clear intent of the Legislature is that any claim for punitive damages in an action against a health care provider be subject to the statute if the injury that is the basis for the claim was caused by conduct that was directly related to the rendition of professional services." (Central Pathology Service Medical Clinic, Inc. v. Superior Court (1992) 3 Cal.4th 181, 192.)

The motion to strike the punitive damages allegations with respect to the Third Cause of Action for Medical Battery is granted. Plaintiff acknowledges section 425.13 in the opposition and states she will file a motion for leave to seek punitive damages. (Opp. at p.3.)

The motion to strike with respect to the Fourth Cause of Action for Fraud is granted for the same reasons discussed above in the ruling on the demurrer.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a

signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant Carlos A. Flores, M.D.'s Demurrer and Motion to Strike came on regularly for hearing on September 4, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE DEMURRER TO

THE COMPLAINT IS OVERRULED AS TO THE SECOND, THIRD, AND FIFTH CAUSES OF ACTION; AND SUSTAINED WITH 30 DAYS' LEAVE TO AMEND AS TO THE FOURTH CAUSE OF ACTION.

THE MOTION TO

STRIKE IS GRANTED WITH 30 DAYS' LEAVE TO AMEND AS TO THE PUNITIVE DAMAGES ALLEGATIONS. TO THE EXTENT PLAINTIFF SEEKS TO ALLEGE PUNITIVE DAMAGES IN CONNECTION WITH THE THIRD CAUSE OF ACTION, PLAINTIFF MUST COMPLY WITH C.C.P. § 425.13.

DEFENDANT

DR. FLORES TO PROVIDE NOTICE.

IT

IS SO ORDERED.